

lawyer and member of the Congress party with a string of high profile cases under his belt.

What added to the media focus on the case was the fact that Sanjeev belongs to an influential and rich business family. His grandfather was the former chief of the Indian Navy, Admiral S.M. Nanda, and his father Suresh is an international arms dealer with a wide network of connections—both political and social. The family in

the past has been in the news for all the wrong reasons; this case is just one of them. Suresh's name appeared in the defence scandal relating to the purchase of Barak missile systems by India from Israel, and is under CBI investigation. Earlier this year, Suresh and Sanjeev were held in Mumbai for allegedly trying to bribe an income-tax official to sort out tax issues of their company. They spent 14 days in judicial custody. The latest conviction marks Sanjeev's third stint in jail.

The BMW case was projected as a test case of whether a common man can get justice when confronted against the rich and the powerful. The prosecution plea was that this case is a classic example of how money power was being used to pollute the criminal justice system, demanding befitting punishment that would act as a deterrent for others in the future. There is no denying the fact that the quantum of money at play in this case is huge: the bail bond executed by Sanjeev is worth Rs 15 crore. The Nanda family has already paid compensations to the tune of 65 lakh to the next of the kin of the killed and the injured. But the defence lawyer feels that his client is a victim of the fact that he is rich, thanks to the media campaign. They were hoping for a conviction, if any, under Section 304 (1) or for "causing death by rash and negligent act", under which the maximum sentence is two years. Says Sanjeev's lawyer Ramesh Gupta, "The media thinks everyone is bought over."

That the media is now playing a pro-active role in such cases is evident. The Jessica Lal case, where the man accused and convicted of shooting her at point bank range was Manu Sharma, son of a powerful politician, is a case in point. The media focus was also evident in the murder case where the son and nephew of another powerful politician—don D.P. Yadav were convicted for murdering their sister's boyfriend Nitish Katara. Of late, drunken driving by the rich or powerful has become another media focus. The Alistair Pereira case in Mumbai was one such, where the 21-year-old son of a businessman was accused of running over seven people under the influence of alcohol. The case had highlighted the need for an effective deterrence when it comes to drunk driving. The National Crime Records

LICENCE TO KILL

Many high-profile people have been involved in drinking and driving cases

SALMAN KHAN, 42

ACTOR

In a case of hit-and-run, he lost control of his car and ran over pavement dwellers in Bandra (West) on September 28, 2002. The case is still in court.

ALISTAIR PEREIRA, 22

BUSINESSMAN

The Bombay High Court sentenced him to three years' rigorous imprisonment for mowing down seven construction workers and injuring eight others on November 12, 2006.

MANISH KHATAU, 24

KHATAU MILLS HEIR

Dashed against police barricades and severely injured a constable on August 14, 2005. He was acquitted by the sessions court, as there were "contradictions in evidence by the witnesses".

NEEL CHATTERJEE, 51

VICE-PRESIDENT, STANDARD CHARTERED,

Arrested on February 4, 2006, for fatally knocking down a 60-year-old watchman and speeding away, causing a series of mishaps.

Bureau's figures for 2006 show that on an average, in India, only 30 per cent of such cases result in conviction. In Delhi, this figure is much lower.

The BMW case, however, has a host of added dimensions, not the least being attempts to destroy evidence as well as the sting operation, which suggested that witnesses and victim's families were being bribed to change their testimonies. At another level, it reopened the debate over whether the rich and powerful can literally get away with murder. A number of cases involving drunken Blueline bus drivers in Delhi gets barely any mention in the media since the perpetrator and victims are generally from poor families. Whatever the merits of the debate, for the courts, the media, and the public, after nine tortuous years, the case, whatever the final punishment, is finally over, though it would be no surprise if there's another twist in the tail. ■



CASE CELEBRE: Sanjeev Nanda being taken into custody

UK LAW

 Driving or attempting to drive with excessive alcohol (35 mg per 100 ml). Penalty: £5,000 fine and/or six months' imprisonment. Mandatory suspension of licence for at least a year for first offence; three years for the second.